

26STCV00792 26STCV00792

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV00792 Hearing Date: September 8, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

8, 2026 TRIAL

DATE: Not set

CASE: Bobby Hicks, et al. v. Lyndon Hotel, L.P., et al.

CASE NO.: 26STCV00792

DEFENDANTS'

MOTION TO STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT

MOVING PARTY: Defendants

Lyndon Hotel, L.P. and Single Room Occupancy Corporation

RESPONDING PARTY: Plaintiffs Bobby

Hicks, et al.

I. BACKGROUND

This is a

habitability action concerning the property located at 413 E 7th St., Los

Angeles, CA 90014 (the "Property"). On January

9, 2026, Plaintiffs filed this habitability action against Defendants, Lyndon

Hotel, L.P. and Single Room Occupancy Corporation, asserting causes of action

for 1) Breach of Contract/Quiet Enjoyment/Habitability; (2) Tortious Breach of Habitability; (3) Negligence; (4) Violation of Cal. Civ. Code § 1942.4; (5) Unfair Business Practices; and (6) Tenant Harassment. Plaintiffs seek punitive damages in connection with the fourth cause of action and attorney fees in connection with the first and second causes of action.

On June 22, 2026, Defendants filed this motion to strike the claims for punitive damages and attorney fees from the Complaint.

On August 25, 2026, Plaintiffs filed an opposition.

On August 27, 2026, Defendants filed a reply.

II. LEGAL STANDARD

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

“The grounds for a motion to strike are limited to matters appearing on the face of the challenged pleading or matters which must or may be judicially noticed. (§ 437, subd. (a); Evid. Code, §§ 451, 452.)” (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 20.)

III. DISCUSSION

A. Attorney Fees

Defendant moves to strike the attorney fees claim because Plaintiffs' lease agreements do not authorize recovery of attorney fees nor does the Complaint identify a statute authorizing the recovery of attorney's fees. The argument lacks merit. Attorney's fees are allowable costs under

Code of Civil Procedure section 1032 when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5(a)(10).)

The Complaint alleges, "Subject to the terms of Plaintiffs' leases, Plaintiffs are entitled to an award of attorney's fees and costs." (Complaint, ¶ 45.) This allegation is sufficient to sustain the attorney's fees claim pursuant to contract.

There is no defect on the face of the Complaint. Having so found, the court does not address whether the Complaint adequately alleges a statutory basis for the recovery of attorneys' fees.

Accordingly,
the motion to strike the attorneys' fees claim is DENIED.

B. Punitive Damages

Defendant moves to strike the punitive damages claim on the grounds (1) there are insufficient allegations to establish malice, oppression, or fraud by corporate leaders. "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294(b).) (Civ. Code, § 3294(b).)

After reviewing the allegations in the Complaint, the court finds punitive damages are sufficiently pleaded. Punitive damages may be recoverable for breaches of the implied warranty of habitability. (See, e.g., *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 916-17, 920.) Here, the Complaint alleges that Defendants knew of illegal conditions on the Property yet did reasonable measures to remedy the defects. (Complaint, ¶ 18.) The conditions included inadequate weather protection, inadequate plumbing, dampness and mold, inadequate sanitation, lack of heating and ventilation, vermin infestation, nuisance, inadequate mechanical equipment, and failure to maintain premises in a good and safe condition. (Complaint, ¶ 17.)

The Complaint also adequately pleads knowledge on the part of Defendants' officer, director, or managing agent. Specifically,

Plaintiffs allege that the County of Los Angeles Housing Department cited Defendants for housing code violations at the Property. (Complaint, ¶ 19.). Despite doing so, Defendants “disregarded their obligations and enabled further violations to occur at the premises.” (Id.) These allegations support the inference that Defendants’ managers, officers, or corporate leaders ratified the conditions on the Property by failing to correct them.

IV. CONCLUSION

Based
on the foregoing, the motion to strike is DENIED.

Defendants are
ordered to serve and file its Answer to the Complaint within 10 days of this order.

Plaintiffs
to give notice, unless waived.

Dated: September 8,
2026

Brock T. Hammond

Judge of the Superior Court